

STATE OF MICHIGAN



JAMES J. BLANCHARD, Governor

DEPARTMENT OF NATURAL RESOURCES

DAVID F. HALES, Director

CADILLAC DISTRICT OFFICE
8015 Mackinaw Trail
Cadillac, Michigan 49601

September 15, 1989

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9-20-89

FAKED ON
SAME DAY



Mr. Steven L. Sanders, 5HS-11
Superfund Section
U.S. Environmental Protection Agency
Region V
230 South Dearborn
Chicago, IL 60606

RE: Draft Record of Decision
Northernair Plating Company and Kysor of Cadillac, Inc.

Dear Mr. Sanders:

We have reviewed the draft Record of Decision (ROD) for the above-referenced facilities and have the following comments which I provided to you verbally:

DECLARATION FOR THE RECORD OF DECISION, Page 3: The State of Michigan concurs with the remedial technology selected for the site. However, the State does not concur with the cleanup levels specified in the draft ROD.

COMPLIANCE WITH ARARS: Any alternative selected at the site must comply with Act 245 and its rules. These rules restrict degradation of waters of the State of Michigan, are more stringent than MCLs, and apply to indirect or direct "addition of materials to groundwater from any facility or operation which acts as a discrete or diffuse source..." R323.2202(j).

In accordance with Section 121 of CERCLA, the target groundwater cleanup levels must attain the level or standard of control specified in Act 245 and the Part 22 regulations. To reflect Act 245 and Part 22, the target groundwater cleanup level for Trichloroethylene should be set at one part per billion (1 ppb) rather than five parts per billion (5 ppb) as presented in the current draft of the ROD.

RECORD OF DECISION COMMENTS:

Section 1.0, Page 2, first paragraph: The description of the "Site" needs to be expanded to reflect additional known sources of contamination which are not included within the ROD but have been addressed in the RI/FS

EPA Region 5 Records Ctr.



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documents upon which this ROD is based. Specifically, the Rexair TCE plume on the east side of the municipal well field and the contaminated soils on the Four Winns' property require mention as to their presence and why they are not addressed within this ROD.

Fifth sentence: The correct spelling of the township is Haring.

Section 2.1, Page 3, second paragraph, sixth sentence: Emergency response measures were conducted in 1983, not 1982.

Section 2.1, Page 4, first paragraph, third and fourth sentences: TCE should be changed to VOCs.

Second paragraph, sixth sentence: Completion is scheduled by September 30, 1989.

Section 2.2: The ROD summary does not adequately reflect the extent of the State role in the RI/FS process. All efforts undertaken in support of the RI/FS (with the exception of some removal activities at the Northern Plating Company facility) have been State-funded and needs to be clearly stated.

Page 4, second paragraph: The series of borings and wells described in this paragraph were efforts undertaken by Kysor of Cadillac, Inc. and a statement must be included to this effect. Clarification is critical prior to finalization of the ROD in light of the fact that these wells were improperly installed and may have exacerbated the groundwater contamination problem.

Page 5, second paragraph, fourth sentence: "Samples taken by MDNR later showed some relatively high concentrations (i.e., greater than 100 parts per million [ppm])..." Delete later showed some relatively high concentrations (i.e. Replace with indicated...

Section 3.0, Page 5, first paragraph: Delete last sentence. All formal reports were developed by MDNR, not U.S. EPA.

Section 5.0, Page 7, first paragraph, first sentence: Spell out "Sixteen."

Third sentence: Typographic error - "them" should be then.

Section 5.1, Page 7, first paragraph, seventh and tenth sentences: Replace "communication" with "connection."

Second paragraph, fifth sentence: Replace "...possibly attributable to..." with "...originating on the property of..."

Section 6.0, Page 8, fourth sentence: Replace "...posed no significant risk to the environment..." with "...posed no significant risk to environmental receptors..."

Section 6.2, Pages 9 to 10: This paragraph states that there are no surface contaminants in soil, sediment, or water remaining in either the Northernnaire or Kysor sites. This statement is inaccurate to the extent that it implies there is no significant soil contamination existing at or in the vicinity of the Kysor site, even through this contamination may not be considered surface contamination. This section should be clarified accordingly.

Section 6.2.1, Page 10, second paragraph, second sentence: Revise to reflect that this ROD does not reflect one of the known plumes of contaminated groundwater.

Fourth sentence: The provision of potable water to the impacted and threatened residences was made at state expense. Include this fact.

Sixth paragraph: Add "However, many residents who have been connected to the municipal water supply have retained their old well for non-consumptive uses."

Section 6.6, Page 12, fourth sentence: Two typographic errors - "Although the groundwater in ...which could be development..." should be "...is... developed..."

Section 7.0: The State would like to see the language EPA proposes for this section, "Documentation of Significant Changes."

Section 8.2, Page 8: Although contaminated soils on the Four Winns property are not included in this ROD, it should be stated that each of these soil alternatives have been evaluated for Four Winns' soils. Remediation of soils on both the Kysor and Four Winns properties is assumed in the groundwater cleanup evaluations.

Section 9.1, Pages 21 and 22: The draft ROD states that because the groundwater remedy would comply with discharge requirements of federal and state ARARs, it "would be considered protective of human health and the environment." Compliance with ARARs, however, does not necessarily mean that the remedy is protective. Protection of human health and the environment and compliance with ARARs are separate and distinct statutory requirements and screening criteria.

Section 9.1.1, Page 22, first paragraph, first sentence: Change "...would also provide adequate protection of human health..." to "...would protect human health..."

Section 9.1.2, Page 22, first paragraph, first sentence: Change "...would provide adequate protection to human health..." to "...would protect human health..."

Section 9.2.1 and throughout remainder of ROD: Specific references should be made to the Michigan Hazardous Waste Management Act, 1979 PA 64, as amended, MCL 299.501 et seq; MSA 13.30(1) et seq, and its rules, found at

Michigan Administrative Code, R 299.9101 et seq; the Michigan Air Pollution Act, 1965 PA 348, as amended, MCL 336.11 et seq; MSA 14.58(1) et seq, and its rules, found at Michigan Administrative Code, R 336.1101 et seq; the Michigan Water Resources Commission Act, 1929 PA 245, as amended, MCL 323.1 et seq; MSA 3.521 et seq, and its rules, found at Michigan Administrative Code, R 323.1001 et seq; and, finally, the Michigan Safe Drinking Water Act, 1976 PA 399, MCL 325.1001 et seq; MSA 14.427 (1) et seq, and its rules, specifically the Part 8 rules, found at Michigan Administrative Code, R 325.10801 et seq. (Query: Was the reference to Part 8 of the SDWA only meant to refer to that section of the Act -- or also the Part 8 Rules?)

Section 9.2.2, Page 24, eighth paragraph: Consistent with CERCLA, Soil Alternative 4 would not require a groundwater discharge permit as the discharge would be onsite. Rather, the Michigan Water Resources Commission Act and the Part 22 groundwater regulations are applicable laws and regulations that provide standards that Soil Alternative 4 would have to attain.

Section 9.3.2, Page 25, first paragraph, first sentence: Delete the first sentence.

Section 10.0, Page 30, first paragraph, first sentence: Groundwater Alternative 3(A) and Soil Alternative 5 should be described as portions of the selected remedy rather than the "preferred alternatives."

This section should also include a discussion of the cleanup levels and provide the basis for the selection of those levels.

In the description of the selected remedy, the terms "would," "will," and "may" should be changed to "shall."

Page 31, last paragraph, last sentence: Rewrite to reflect that, based on the RI/FS, Soil Alternative 5 is the best alternative. The subjective term "feels" should not be included in this sentence.

Section 10.1, Page 32, first paragraph, first sentence: Revise to reflect that the Michigan Safe Drinking Water Act shall be complied with, rather than simply "considered."

Fourth paragraph, first sentence: Typographic error - "grounwater" should be groundwater.

Section 10.3, Pages 34, second paragraph, first and third sentences: Replace "may" with "shall." Additionally, specific reference should be made to the Michigan Air Pollution Act and its rules. It is unclear why reference is limited to Rule 201 and, later on, only to Rules 701 and 702. Referenced State rules should be properly cited. Rule 201 is R336.1201; Rules 701 and 702 are R 336.1701 and R 336.1702, respectfully.

Last sentence: Delete this sentence. A determination of "injurious" is not outlined in the regulations.

Section 10.4, Page 35, fifth paragraph, first sentence: The proper citation for Act 64 Rules 603 and 604 is R 299.9603 and R299.9604.

Sixth paragraph, third sentence: Rewrite as, "If carbon is not regenerated onsite, ..."

Section 11.2, Page 37, Chemical Specific ARARs: The MCLGs were not considered as ARARs. The MCLG for TCE is 0 ppb.

Table 9-1: The Proposed Part 22 groundwater discharge rules are referenced as ARARs. Proposed rules by definition are not ARARs. This table should discuss the current regulations, which are ARARs. Also, Table 9.1 references the Part 9 Rules of the Air Pollution Control Commission as potential action specific ARARs. In summarizing the requirements of the Part 9 Rules, Table 9-1 states: "This regulation outlines the standards and requirements for air pollution control in the State of Michigan. All provisions, procedures, and definitions are described." Then, under action to be taken, specific particulate matter emission standards are cited. The reference to the Part 9 Rules is inaccurate. First, the Part 9 Rules provide general emission standards, not specific standards. Second, the particulate matter emission standards are not set forth in the Part 9 Rules, but rather in the Part 3 Rules of the Commission. The reference herein to the Michigan Air Pollution Control Commission Rules should, therefore, be significantly broader and include specific reference to the Part 3 Rules.

Please do not hesitate to contact me if you would like to further discuss these comments.

Sincerely

ENVIRONMENTAL RESPONSE DIVISION



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